

SENATE No. 1393**The Commonwealth of Massachusetts**

PRESENTED BY:

Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to preventing overdose deaths and increasing access to treatment.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Julian Cyr</i>	<i>Cape and Islands</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/28/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>1/29/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>1/29/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>1/30/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>2/5/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/11/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/21/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/25/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/12/2025</i>
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	<i>3/12/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>3/21/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/24/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>10/14/2025</i>

SENATE No. 1393

By Mr. Cyr, a petition (accompanied by bill, Senate, No. 1393) of Julian Cyr, Joanne M. Comerford, Jason M. Lewis, John F. Keenan and other members of the Senate for legislation relative to preventing overdose deaths and increasing access to treatment. Mental Health, Substance Use and Recovery.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1242 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to preventing overdose deaths and increasing access to treatment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws, as appearing in the 2022 edition, is
2 hereby amended by inserting after section 215 the following new section:-

3 Section 215A. (a) For the purposes of this section, the following words shall have the
4 following meanings unless the context clearly requires otherwise:

5 “Harm reduction program”, a program or service that reduces the adverse consequences
6 of substance use, including use-related morbidity and mortality, stabilizes and improves the
7 health of people who use substances, and advances public health. Programming or services
8 provided by a harm reduction program may include, but shall not be limited to: needle exchange;
9 primary care, including disease prevention and health screenings; access or referral to evidence-

based treatment options; drug testing services; overdose reversal care; supervision of persons who use pre-obtained substances; and other social support services deemed permissible by the department.

“Harm reduction program operators”, entities or individuals directly involved in the operation, administration or staffing of a harm reduction program, including directors, board members, consultants, health care providers, service providers, staff and volunteers.

(b) Not later than 1 year after the implementation of a harm reduction program under this subsection, the department shall report the results of authorized programs pursuant to this section and any recommendations by filing the report with the clerks of the senate and house of representatives, the joint committee on mental health, substance use and recovery, the joint committee on public health and the senate and house committees on ways and means.

(c) Notwithstanding any general or special law to the contrary, harm reduction program operators, individuals who access harm reduction program services, owners, lessors and sublessors of property used for harm reduction programs and state, county and municipal employees involved in approving or operating harm reduction programs shall, for actions related to the approval or operation of, or participation in, a harm reduction program, be immune from: (i) arrest, charge or prosecution, including for attempting, aiding and abetting or conspiracy to commit a violation, pursuant to sections 32, 32A, 32B, 32C, 32D, 32E, 32I, 34, 40, 43 and 47 of chapter 94C and chapter 271A; (ii) seizure or forfeiture of data, records, assets or property under state law; (iii) civil suit, liability or damages alleged to have been sustained by an act or omission by a harm reduction program operator in the course of providing harm reduction services; (iv) denial of any right or privilege; and (v) for health care providers, disciplinary action by a

professional licensing board, credentialing restriction, contractual liability, adverse employment action or denial of any professional privilege; provided, however, that the immunity described in this subsection shall apply only if the harm reduction program is approved by the department and operates in good faith in accordance with this section and regulatory requirements issued by the department.

(d) Entering or exiting or utilizing a harm reduction program cannot serve as the basis for, or a fact contributing to the existence of, reasonable suspicion or probable cause to conduct a search or seizure.

(e) The immunity provided under subsection (c) shall not apply: (i) if the damage was caused by an act or omission constituting gross negligence or recklessness, conduct with an intent to harm, discrimination based on race, ethnicity, national origin, religion, disability, sexual orientation or gender identity, or conduct outside the scope of responsibility of a harm reduction program employee or volunteer, as determined by the department; (ii) to consumer protection actions brought by the attorney general; (iii) to false claims actions brought by or on behalf of the commonwealth; or (iv) privacy violations.

(f) Notwithstanding any general law or special law to the contrary, a person or entity providing harm reduction services under this section and approved by the department shall not be required to register their activities pursuant to section 7 of chapter 94C.

(g) The department shall promulgate regulations to implement this section.

SECTION 2. Section 193U of chapter 175 of the general laws, as amended by section 23 of chapter 127 of the acts of 2022, is hereby amended by inserting in the first sentence of the

53 second paragraph, after the word “that,”, the following words:- “a health care provider provides
54 services at a harm reduction program, or”.